

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge John L. Kane

Civil Action No. 00-cv-1077-JLK

UNITED STATES OF AMERICA, ex rel, ALI BAHRANI,

Plaintiffs,

v.

CONAGRA, INC.,
CONAGRA HIDE DIVISION,
CONAGRA BEEF COMPANIES, and
MONFORT, INC.,

Defendants.

SPECIAL VERDICT FORM – MARCH 2009 HIDES TRIAL

We, the jury, present our Answers to the Questions submitted by the Court, to
which we have all agreed:

1. Do you find, by a preponderance of the evidence, that Defendants made
“major” or “significant” changes to any hide export certificate? (*See generally*
Instructions 1.2, 1.7; *see also* Instruction 3.2 regarding propositions you are to accept as
true and Instruction 3.4 – “Major” or “Significant” Change - Defined.)

YES ☒

NO ☐

**IF YOUR ANSWER TO QUESTION 1 IS “YES,”
PLEASE PROCEED TO QUESTION 2. IF YOUR
ANSWER TO QUESTION 1 IS “NO,” THEN SKIP THE
REMAINDER OF THE QUESTIONS AND SIGN AND
DATE THIS SPECIAL VERDICT FORM BELOW.**

2. How many hide export certificates do you find contain "major" or "significant" changes, where no replacement certificate was obtained? (See Instr. 3.8.)

NUMBER OF CERTIFICATES: 5

IF YOUR ANSWER TO QUESTION 2 IS 1 OR MORE CERTIFICATES, PROCEED TO QUESTION 3. IF YOUR ANSWER TO QUESTION 2 IS NONE, THEN SKIP THE REMAINDER OF THE QUESTIONS AND SIGN AND DATE THIS SPECIAL VERDICT FORM BELOW.

3. How many of the hide export certificates containing major or significant changes, for which no replacement certificate was obtained, do you find by a preponderance of the evidence were changed "knowing" a replacement certificate was required? ("Knowing" and "Knowingly" are defined in Instruction 3.5.)

NUMBER OF CERTIFICATES: 5

IF YOUR ANSWER TO QUESTION 3 IS 1 OR MORE CERTIFICATES, PROCEED TO QUESTION 4. IF YOUR ANSWER TO QUESTION 3 IS NONE, THEN SKIP THE REMAINDER OF THE QUESTIONS AND SIGN AND DATE THIS SPECIAL VERDICT FORM BELOW.

4. How many of the hide export certificates containing major or significant changes, for which no replacement certificate was obtained, do you find by a preponderance of the evidence were changed with the intent or purpose of "concealing, avoiding or decreasing" the obligation to secure and pay for a replacement certificate? (See Instruction No. 3.2.)

NUMBER OF CERTIFICATES: 0

PLEASE SIGN AND DATE THIS VERDICT FORM.

Dated this 14th day of March, 2009.

Presiding Juror

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